POS-040

ATTORNEY OR PARTY WITHOUT ATTORNEY: STATE BAR NO:	FOR COURT USE ONLY
NAME: DERRICK LAMONT BEVERLY FIRM NAME: STREET ADDRESS: 849 South Normandie Avenue #101 CITY: Los Angeles, CA. 90005 STATE: CA ZIP CODE: 90005 TELEPHONE NO.: 310-300-3183 FAX NO.: E-MAIL ADDRESS: derrickcrilamont@yahoo.com ATTORNEY FOR (name):	FILED Superior Court of California County of Los Angeles SEP 18 2023 David W. Slayton, Executive Officer/Clerk of Court By: F. Ochoa, Deputy
SUPERIOR COURT OF CALIFORNIA, COUNTY OF STREET ADDRESS: 111 N. Hill MAILING ADDRESS: CITY AND ZIP CODE: Los Angeles, 90012 BRANCH NAME: Central - District Stanley Mosk Courthouse	
Plaintiff/Petitioner: DERRICK LAMONT BEVERLY Defendant/Respondent: Fox Normandie Apartments, LP	CASE NUMBER: 22STUD06657
PROOF OF SERVICE—CIVIL	JUDICIAL OFFICER:
Check method of service *(only one)*: ☐ By Personal Service ☐ By Mail ☐ By Overnight Delivery ☒ ~~By Messenger Service~~ ☒ By Fax (Email)	DEPARTMENT:

Do not use this form to show service of a summons and complaint or for electronic service.
See USE OF THIS FORM on page 3.

1. At the time of service I was over 18 years of age **and not a party to this action**.
2. My residence or business address is:
   849 South Normandie Avenue #101
   Los Angeles, CA. 90005
3. ☐ The fax number from which I served the documents is *(complete if service was by fax)*:
4. On *(date)*: 9/18/2023 I served the following **documents** *(specify)*:
   - Notice of Filing of Notice of Appeal
   - Notice of Appeal (Civil Case Limited)
   - Appellants Notice Designating Record of Appeal

   ☒ The documents are listed in the *Attachment to Proof of Service–Civil (Documents Served)* (form POS-040(D)).
5. I served the documents on the **person or persons** below, as follows:
   a. Name of person served: Ada - Cordero - Sacks
   b. ☐ *(Complete if service was by personal service, mail, overnight delivery, or messenger service.)*
      Business or residential address where person was served:
   c. ☒ *(Complete if service was by ~~fax~~.)* email
      Fax number where person was served:

      ☐ The names, addresses, and other applicable information about persons served is on the *Attachment to Proof of Service—Civil (Persons Served)* (form POS-040(P)).
6. The documents were served by the following means *(specify)*:
   a. ☐ **By personal service.** I personally delivered the documents to the persons at the addresses listed in item 5. (1) For a party represented by an attorney, delivery was made (a) to the attorney personally; or (b) by leaving the documents at the attorney's office, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office; or (c) if there was no person in the office with whom the notice or papers could be left, by leaving them in a conspicuous place in the office between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and eight in the evening.

09/19/2023

Form Approved for Optional Use
Judicial Council of California
POS-040 [Rev. January 1, 2020]

PROOF OF SERVICE—CIVIL
(Proof of Service)

Code of Civil Procedure, §§ 1011, 1013, 1013a, 2015.5; Cal. Rules of Court, rule 2.306
www.courts.ca.gov

CASE NAME:	CASE NUMBER:

6. b. ☐ **By United States mail.** I enclosed the documents in a sealed envelope or package addressed to the persons at the addresses in item 5 and *(specify one)*:

(1) ☐ deposited the sealed envelope with the United States Postal Service, with the postage fully prepaid.

(2) ☐ placed the envelope for collection and mailing, following our ordinary business practices. I am readily familiar with this business's practice for collecting and processing correspondence for mailing. On the same day that correspondence is placed for collection and mailing, it is deposited in the ordinary course of business with the United States Postal Service, in a sealed envelope with postage fully prepaid.

I am a resident or employed in the county where the mailing occurred. The envelope or package was placed in the mail at *(city and state)*:

c. ☐ **By overnight delivery.** I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the persons at the addresses in item 5. I placed the envelope or package for collection and overnight delivery at an office or a regularly utilized drop box of the overnight delivery carrier.

d. ☐ **By messenger service.** I served the documents by placing them in an envelope or package addressed to the persons at the addresses listed in item 5 and providing them to a professional messenger service for service. *(A declaration by the messenger must accompany this Proof of Service or be contained in the Declaration of Messenger below.)*

e. ☒ **By fax transmission.** Based on an agreement of the parties to accept service by fax transmission, I faxed the documents to the persons at the fax numbers listed in item 5. No error was reported by the fax machine that I used. A copy of the record of the fax transmission, which I printed out, is attached.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: 9/18/2025

DERRICK LAMONT BEVERLY
(TYPE OR PRINT NAME OF DECLARANT)

(SIGNATURE OF DECLARANT)

(If item 6d above is checked, the declaration below must be completed or a separate declaration from a messenger must be attached.)

DECLARATION OF MESSENGER

☐ **By personal service.** I personally delivered the envelope or package received from the declarant above to the persons at the addresses listed in item 5. (1) For a party represented by an attorney, delivery was made (a) to the attorney personally; or (b) by leaving the documents at the attorney's office, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office; or (c) if there was no person in the office with whom the notice or papers could be left, by leaving them in a conspicuous place in the office between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and eight in the evening.

At the time of service, I was over 18 years of age. I am not a party to the above-referenced legal proceeding.

I served the envelope or package, as stated above, on *(date)*:

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: _____

_____
(NAME OF DECLARANT)

_____
(SIGNATURE OF DECLARANT)

09/19/2023

INFORMATION SHEET FOR PROOF OF SERVICE—CIVIL

(This information sheet is not part of the official proof of service form and does not need to be copied, served, or filed.)

USE OF THIS FORM

This form is designed to be used to show proof of service of documents by (1) personal service, (2) mail, (3) overnight delivery, (4) messenger service, or (5) fax.

This proof of service form should **not** be used to show proof of service of a summons and complaint. For that purpose, use *Proof of Service of Summons* (form POS-010).

Also, this proof of service form should **not** be used to show proof of electronic service. For that purpose, use *Proof of Electronic Service* (form POS-050).

Certain documents must be personally served. For example, an order to show cause and temporary restraining order generally must be served by personal delivery. You must determine whether a document must be personally delivered or can be served by mail or another method.

GENERAL INSTRUCTIONS

A person must be over 18 years of age to serve the documents. The person who served the documents must complete the Proof of Service. **A party to the action cannot serve the documents.**

The Proof of Service should be typed or printed. If you have Internet access, a fillable version of this proof of service form is available at *www.courts.ca.gov/forms.htm.*

Complete the top section of the proof of service form as follows:

First box, left side: In this box print the name, address, and telephone number of the person for whom you served the documents.

Second box, left side: Print the name of the county in which the legal action is filed and the court's address in this box. The address for the court should be the same as the address on the documents that you served.

Third box, left side: Print the names of the plaintiff/petitioner and defendant/respondent in this box. Use the same names as are on the documents that you served.

Fourth box, left side: Check the method of service that was used. You should check only one method of service and should show proof of only one method on the form. If you served a party by several methods, use a separate form to show each method of service.

First box, top of form, right side: Leave this box blank for the court's use.

Second box, right side: Print the case number in this box. The case number should be the same as the case number on the documents that you served.

Third box, right side: State the judge and department assigned to the case, if known.

Complete items 1–6:

1. You are stating that you are over the age of 18.
2. Print your home or business address.
3. If service was by fax service, print the fax number from which service was made.
4. List each document that you served. If you need more space, check the box in item 4, complete the *Attachment to Proof of Service—Civil (Documents Served)* (form POS-040(D)), and attach it to form POS-040.
5. Provide the names, addresses, and other applicable information about the persons served. If more than one person was served, check the box on item 5, complete the *Attachment to Proof of Service—Civil (Persons Served)* (form POS-040(P)), and attach it to form POS-040.
6. Check the box before the method of service that was used, and provide any additional information that is required. The law may require that documents be served in a particular manner (such as by personal delivery) for certain purposes. Service by fax generally requires the prior agreement of the parties.

You must sign and date the proof of service form. By signing, you are stating under penalty of perjury that the information that you have provided on form POS-040 is true and correct.

09/19/2023

For your protection and privacy, please press the Clear This Form button after you have printed the form.

Print this form | Save this form | Clear this form

Derrick LaMont
Beverly
derniercrilamont@yahoo.com

From:	Derrick LaMont Beverly derniercrilamont@yahoo.com
Sent:	Mon, 18 Sep 2023 22:07:57 +0000
To:	lapl-central-bw@printspots.com
Subject:	Fw: DERRICK LAMONT BEVERLY, NOTICE OF FILING OF NOTICE OF APPEAL, NOTICE OF APPEAL/CROSS-APPEAL/APPELLANTS NOTICE DESIGNATING RECORD ON APPEAL ATTACHMENTS

Sent from Yahoo Mail on Android

_____ Forwarded Message _____
From: "Derrick LaMont Beverly" <derniercrilamont@yahoo.com>
To: "ada@loacs.com" <ada@loacs.com>
Sent: Mon, Sep 18, 2023 at 3:03 PM
Subject: DERRICK LAMONT BEVERLY, NOTICE OF FILING OF NOTICE OF APPEAL, NOTICE OF APPEAL/CROSS-APPEAL/APPELLANTS NOTICE DESIGNATING RECORD ON APPEAL ATTACHMENTS
Please find all attached documents to this email.

Thank you,

DERRICK LAMONT BEVERLY

Sent from Yahoo Mail on Android

09/19/2023

SUPERIOR COURT OF CALIFORNIA
COUNTY OF LOS ANGELES

COURTHOUSE ADDRESS:	Stanley Mosk Courthouse Civil Appeals Division 111 North Hill Street, Room 111A Los Angeles, CA 90012 Telephone: (213) 830-0822
PLAINTIFF/PETITIONER:	FOX NORMANDIE APARTMENTS, LP
DEFENDANT/RESPONDENT:	DERRICK L. BEVERLY

Reserved for Clerk's File Stamp

FILED
LOS ANGELES SUPERIOR COURT

September 12, 2023

DAVID W. SLAYTON
Executive Officer/Clerk of the Court
By: E. Morales, Deputy

NOTICE OF FILING OF NOTICE OF APPEAL (LIMITED CIVIL)

TRIAL COURT CASE NUMBER: 22STUD06657

NOTICE OF APPEAL DATE: 09/11/2023

To the Appellate Division: A ☒ Notice of Appeal ☐ Cross-Appeal was filed by **DERRICK LAMONT BEVERLY**

Date of Judgment or Order: 11/29/2022

Trial Court Judicial Officer: ALISON MACKENZIE ☒ Judge ☐ Commissioner ☐ Temporary Judge

Courthouse: STANLEY MOSK COURTHOUSE Department: 91

IMPORTANT INFORMATION REGARDING THE DESIGNATION OF THE ORAL PROCEEDINGS
Pursuant to the Superior Court of Los Angeles County, Local Rules, rule 9.2 (a)(5), when any party elects to use the official electronic recording as the record of the oral proceedings, the court will provide a written transcript of the electronic recording prepared under the provisions of California Rules of Court, rule 2.952 as the record of oral proceedings to all parties without fee.

CERTIFICATE OF SERVICE/MAILING
I, the below-named Executive Officer/Clerk of the above-entitled court, do hereby certify that I am not a party to the cause herein, and that on this date I served the Notice of Filing of Notice of Appeal (Limited Civil) upon each party or counsel named below in the United States mail at the courthouse in Los Angeles, California, one copy of the original filed/entered herein in a separate sealed envelope to each address as shown below with postage thereon fully prepaid, in accordance with standard court practices.
☒ A copy of this notice is transmitted electronically to the Appellate Division.

DERRICK LAMONT BEVERLY Trial Court Designation: Defendant	☐ Represented by Attorney ☒ Self-represented DERRICK LAMONT BEVERLY 849 SOUTH NORMANDIE AVENUE #101 LOS ANGELES, CA 90005
FOX NORMANDIE APARTMENTS, LP Trial Court Designation: Plaintiff	☒ Represented by Attorney ☐ Self-represented ADA R CORDERO-SACKS LAW OFFICES OF ADA R. CORDERO-SACKS 8399 TOPANGA CANYON BLVD., SUITE 304 WEST HILLS, CA 91304

09/19/2023

NOTICE OF FILING OF NOTICE OF APPEAL (UNLIMITED CIVIL)

CASE NUMBER: 22STUD06657	CASE TITLE: FOX NORMANDIE APARTMENTS, LP vs DERRICK L. BEVERLY

Trial Court Designation:	☐ Represented by Attorney ☐ Self-represented
Trial Court Designation:	☐ Represented by Attorney ☐ Self-represented
Trial Court Designation:	☐ Represented by Attorney ☐ Self-represented
Trial Court Designation:	☐ Represented by Attorney ☐ Self-represented
Trial Court Designation:	☐ Represented by Attorney ☐ Self-represented
Trial Court Designation:	☐ Represented by Attorney ☐ Self-represented
Trial Court Designation:	☐ Represented by Attorney ☐ Self-represented

09/19/2023

DAVID W. SLAYTON, Executive Officer/Clerk of Court

DATE: September 12, 2023

By: E. MORALES, Deputy Clerk

SUPERIOR COURT OF CALIFORNIA
COUNTY OF LOS ANGELES

COURTHOUSE ADDRESS:	Stanley Mosk Courthouse Civil Appeals Division 111 North Hill Street, Room 111A Los Angeles, CA 90012 Telephone: (213) 830-0822
PLAINTIFF/PETITIONER:	FOX NORMANDIE APARTMENTS, LP
DEFENDANT/RESPONDENT:	DERRICK L. BEVERLY

Reserved for Clerk's File Stamp

FILED
LOS ANGELES SUPERIOR COURT

September 12, 2023

DAVID W. SLAYTON
Executive Officer/Clerk of the Court
By: E. Morales, Deputy

NOTICE OF FILING OF NOTICE OF APPEAL (LIMITED CIVIL)

TRIAL COURT CASE NUMBER: 22STUD06657

NOTICE OF APPEAL DATE: 09/11/2023

To the Appellate Division: A ☒ Notice of Appeal ☐ Cross-Appeal was filed by **DERRICK LAMONT BEVERLY**

Date of Judgment or Order: 11/29/2022

Trial Court Judicial Officer: ALISON MACKENZIE ☒ Judge ☐ Commissioner ☐ Temporary Judge

Courthouse: STANLEY MOSK COURTHOUSE Department: 91

IMPORTANT INFORMATION REGARDING THE DESIGNATION OF THE ORAL PROCEEDINGS
Pursuant to the Superior Court of Los Angeles County, Local Rules, rule 9.2 (a)(5), when any party elects to use the official electronic recording as the record of the oral proceedings, the court will provide a written transcript of the electronic recording prepared under the provisions of California Rules of Court, rule 2.952 as the record of oral proceedings to all parties without fee.

CERTIFICATE OF SERVICE/MAILING
I, the below-named Executive Officer/Clerk of the above-entitled court, do hereby certify that I am not a party to the cause herein, and that on this date I served the Notice of Filing of Notice of Appeal (Limited Civil) upon each party or counsel named below in the United States mail at the courthouse in Los Angeles, California, one copy of the original filed/entered herein in a separate sealed envelope to each address as shown below with postage thereon fully prepaid, in accordance with standard court practices.
☒ A copy of this notice is transmitted electronically to the Appellate Division.

DERRICK LAMONT BEVERLY Trial Court Designation: Defendant	☐ Represented by Attorney ☒ Self-represented DERRICK LAMONT BEVERLY 849 SOUTH NORMANDIE AVENUE #101 LOS ANGELES, CA 90005
FOX NORMANDIE APARTMENTS, LP Trial Court Designation: Plaintiff	☒ Represented by Attorney ☐ Self-represented ADA R CORDERO-SACKS LAW OFFICES OF ADA R. CORDERO-SACKS 8399 TOPANGA CANYON BLVD., SUITE 304 WEST HILLS, CA 91304

09/19/2023

NOTICE OF FILING OF NOTICE OF APPEAL (UNLIMITED CIVIL)

CASE NUMBER: 22STUD06657	CASE TITLE: FOX NORMANDIE APARTMENTS, LP vs DERRICK L. BEVERLY

Trial Court Designation:	☐ Represented by Attorney ☐ Self-represented
Trial Court Designation:	☐ Represented by Attorney ☐ Self-represented
Trial Court Designation:	☐ Represented by Attorney ☐ Self-represented
Trial Court Designation:	☐ Represented by Attorney ☐ Self-represented
Trial Court Designation:	☐ Represented by Attorney ☐ Self-represented
Trial Court Designation:	☐ Represented by Attorney ☐ Self-represented
Trial Court Designation:	☐ Represented by Attorney ☐ Self-represented

09/19/2023

DAVID W. SLAYTON, Executive Officer/Clerk of Court

DATE: September 12, 2023

By: E. MORALES, Deputy Clerk

APP-102 Notice of Appeal/Cross-Appeal (Limited Civil Case)

Clerk stamps date here when form is filed.

FILED
Superior Court of California
County of Los Angeles

SEP 11 2023

David W. Slayton, Executive Officer/Clerk of Court
By: J. Ulloa, Deputy

Instructions

- This form is only for appealing in a **limited civil case.** You can get other forms for appealing in unlimited civil cases at any courthouse or county law library or online at *www.courts.ca.gov/forms.*
- Before you fill out this form, read *Information on Appeal Procedures for Limited Civil Cases* (form APP-101-INFO) to know your rights and responsibilities. You can get form APP-101-INFO at any courthouse or county law library or online at *www.courts.ca.gov/forms.*
- You must serve and file this form **no later than 30 days** after the trial court or a party serves a document called a Notice of Entry of the trial court judgment or a file-stamped copy of the judgment or 90 days after entry of judgment, whichever is earlier (see rule 8.823 of the California Rules of Court for very limited exceptions). **If your notice of appeal is late, your appeal will be dismissed.**
- Fill out this form and make a copy of the completed form for your records and for each of the other parties.
- Serve a copy of the completed form on each of the other parties and keep proof of this service. You can get information about how to serve court papers and proof of service from *What Is Proof of Service?* (form APP-109-INFO) and on the California Courts Online Self-Help Center at *www.courts.ca.gov/selfhelp-serving.htm.*
- Take or mail the original completed form and proof of service on the other parties to the clerk's office for the same court that issued the judgment or order you are appealing. It is a good idea to take or mail an extra copy to the clerk and ask the clerk to stamp it to show that the original has been filed.

You fill in the name and street address of the court that issued the judgment or order you are appealing:

Superior Court of California, County of

You fill in the number and name of the trial court case in which you are appealing the judgment or order:

Trial Court Case Number: 22STCV06657

Trial Court Case Name: Fox Wilmington Apartments, LP Derrick L. Beverly

The clerk will fill in the number below

Appellate Division Case Number:

(1) Your Information

a. Name of appellant (the party who is filing this appeal): DERRICK LAMONT BEVERLY

☐ *Check here if more than one appellant and attach a separate page or pages listing the other appellants and their contact information. At the top of each page, write "APP-102, item 1a."*

b. Appellant's contact information *(skip this if the appellant has a lawyer for this appeal):*

Street address: 849 South Normandie Avenue #101 Los Angeles CA 90005
Street *City* *State* *Zip*

Mailing address *(if different):* _____
Street *City* *State* *Zip*

Phone: 310-300-3183 E-mail: derniercri.lamont@yahoo.com

c. Appellant's lawyer *(skip this if the appellant does not have a lawyer for this appeal):*

Name: _____ State Bar number: _____

Street address: _____
Street *City* *State* *Zip*

Mailing address *(if different):* _____
Street *City* *State* *Zip*

Phone: _____ E-mail: _____

Fax: _____

09/19/2023

8/28/23
NO FEE RECEIVED
(APP. OF WAIVER FILED)

Trial Court Case Name: _____ | Trial Court Case Number:

(2) This is *(check a or b)*:

a. ☑ The first appeal in this case.

b. ☐ A cross-appeal (an appeal filed after the first appeal in this case *(complete (1), (2), and (3))*.

(1) The notice of appeal in the first appeal was filed on *(fill in the date that the other party filed its notice of appeal in this case)*: _____

(2) The trial court clerk served notice of the first appeal on *(fill in the date that the clerk served the notice of the other party's appeal in this case)*: _____

(3) The appellate division case number for the first appeal is *(fill in the appellate division case number of the other party's appeal, if you know it)*: _____

(3) Judgment or Order You Are Appealing

I am/My client is appealing *(check a or b)*:

a. ☑ The final judgment in the trial court case identified in the box on page 1 of this form.
The date the trial court entered this judgment was *(fill in the date)*: 11/29/2023

b. ☐ Other:

(1) ☐ An order made after final judgment in the case.
The date the trial court entered this order was *(fill in the date)*: _____

(2) ☐ An order changing or refusing to change the place of trial (venue).
The date the trial court entered this order was *(fill in the date)*: _____

(3) ☐ An order granting a motion to quash service of summons.
The date the trial court entered this order was *(fill in the date)*: _____

(4) ☐ An order granting a motion to stay or dismiss the action on the ground of inconvenient forum.
The date the trial court entered this order was *(fill in the date)*: _____

(5) ☐ An order granting a new trial.
The date the trial court entered this order was *(fill in the date)*: _____

(6) ☐ An order denying a motion for judgment notwithstanding the verdict.
The date the trial court entered this order was *(fill in the date)*: _____

(7) ☐ An order granting or dissolving an injunction or refusing to grant or dissolve an injunction.
The date the trial court entered this order was *(fill in the date)*: _____

09/19/2023

Trial Court Case Name: _____ | Trial Court Case Number:

(3) *(continued)*

(8) ☐ An order appointing a receiver.
The date the trial court entered this order was *(fill in the date)*: _____

(9) ☑ Other action *(please describe and indicate the date the trial court took the action you are appealing)*:
Sheriff arrived January 26th 2023 refusing to accept upon the judge court ordered right for submission of the already complete Plaintiffs Proof of Service "Claim of Right to Possession" & Notice of Hearing" EP10 for exchange for receipt to allot me my right to be heard & submit receipt to the Court for filing. Recorded via facebook live video to serve as evidence prepa to Plaintiffs. No proof of service prior to "Eviction" notice January 4th 2023

(4) **Record Preparation Election**
Complete this section only if you are filing the first appeal in this case. If you are filing a cross-appeal, skip this section and go to the signature line.

If you are filing the first appeal in this case, you must serve and file a notice in the trial court designating the record on appeal. You may use Appellant's Notice Designating Record on Appeal (Limited Civil Case) *(form APP-103). Check a or b:*

a. ☑ I will serve and file a notice designating the record on appeal together with this notice of appeal.

b. ☐ I will serve and file a notice designating the record on appeal later. I understand that I must file this notice in the trial court within 10 days of the date I file this notice of appeal, and that if I do not file the notice designating the record on time, the court may dismiss my appeal.

REMINDER: Except in the very limited circumstances listed in rule 8.823, you must serve and file this form no later than (1) 30 days after the trial court clerk or a party serves either a document called a Notice of Entry of the trial court judgment or a file-stamped copy of the judgment, or (2) within 90 days after entry of judgment, whichever is earlier. If your notice of appeal is late, your appeal will be dismissed.

Date: 9/11/2023
DERRICK LAMONT BEVERLY
Type or print your name
Signature of appellant/cross-appellant or attorney

Date: _____
_____
Type or print your name
Signature of appellant/cross-appellant or attorney

Date: _____
_____
Type or print your name
Signature of appellant/cross-appellant or attorney

09/19/2023

APP-103

Appellant's Notice Designating Record on Appeal (Limited Civil Case)

Clerk stamps date here when form is filed.

FILED
Superior Court of California
County of Los Angeles

SEP 11 2023

David W. Slayton, Executive Officer/Clerk of Court
By: J. Ulloa, Deputy

Instructions

- This form is only for choosing ("designating") the record on appeal in a **limited civil case.**
- Before you fill out this form, read *Information on Appeal Procedures for Limited Civil Cases* (form APP-101-INFO) to know your rights and responsibilities. You can get form APP-101-INFO at any courthouse or county law library or online at *www.courts.ca.gov/forms.*
- This form can be attached to your notice of appeal. If it is not attached to your notice of appeal, you must serve and file this form within 10 days after you file your notice of appeal. **If you do not file this form on time, the court may dismiss your appeal.**
- Fill out this form and make a copy of the completed form for your records and for each of the other parties.
- Serve a copy of the completed form on each of the other parties and keep proof of this service. You can get information about how to serve court papers and proof of service on the California Courts Online Self-Help Center site at *www.courts.ca.gov/selfhelp-serving.htm.*
- Take or mail the original completed form and proof of service on the other parties to the clerk's office for the same court that issued the judgment or order you are appealing. It is a good idea to take or mail an extra copy to the clerk and ask the clerk to stamp it to show that the original has been filed.

You fill in the name and street address of the court that issued the judgment or order you are appealing:

Superior Court of California, County of

You fill in the number and name of the trial court case in which you are appealing the judgment or order:

Trial Court Case Number: 22TWW06657

Trial Court Case Name: Fox Norwalk Partners, LP v. Derrick L. Beverly

You fill in the appellate division case number (if you know it):

Appellate Division Case Number:

(1) Your Information

a. Name of Appellant (the party who is filing this appeal):

Name: DERRICK LAMONT BEVERLY

b. Appellant's contact information *(skip this if the appellant has a lawyer for this appeal):*

Street address: 849 South Normandie Avenue #101 Los Angeles CA. 90005
Street *City* *State* *Zip*

Mailing address *(if different):* _____
Street *City* *State* *Zip*

Phone: _____ E-mail: _____

c. Appellant's lawyer *(skip this if the appellant does not have a lawyer for this appeal):*

Name: _____ State Bar number: _____

Street address: _____
Street *City* *State* *Zip*

Mailing address *(if different):* _____
Street *City* *State* *Zip*

Phone: _____ E-mail: _____

Fax: _____

09/11/2023

Trial Court Case Name: _____ | Trial Court Case Number:

Information About Your Appeal

(2) On *(fill in the date)*: September 11th, 2023 I/my client filed a notice of appeal in the trial court case identified in the box on page 1 of this form.

Record of Oral Proceedings in the Trial Court

You do not have to provide the appellate division with a record of what was said in the trial court (this is called a record of the "oral proceedings"). But if you want to raise any issue in your appeal that would require the appellate division to consider what was said in the trial court, you will need to provide the appellate division with a record of those oral proceedings. For example, if you are claiming that there was not evidence supporting the judgment, order, or other decision you are appealing, you will need to provide a record of the oral proceedings.

(3) I elect (choose)/My client elects to proceed *(check a or b)*:

a. ☑ WITHOUT a record of the oral proceedings in the trial court (*skip item (4); go to item (5)*). I understand that if I elect to proceed without providing a record of the oral proceedings, the appellate division will not be able to review any issues I might want to raise about what was said in the trial court during those proceedings or any claim that there was not evidence to support the judgment, order, or decision I am appealing. *(Write initials here)*: _____

b. ☐ WITH a record of the oral proceedings in the trial court *(complete item (4) below)*. I understand that if I elect (choose) to proceed WITH a record of the oral proceedings in the trial court, I have to choose the record I want to use and take the actions described below to make sure this record is provided to the appellate division. I understand that if I do not take the actions described below and the appellate division does not receive this record, I am not likely to succeed in my appeal. *(Write initials here)*: _____

(4) I want to use the following record of what was said in the trial court proceedings in my case *(check and complete **only one** of the following below—a, b, c, d, or e)*:

a. ☐ **Reporter's Transcript.** *This option is available only if there was a court reporter in the trial court who made a record of what was said in court. Check with the trial court to see if there was a court reporter in your case before choosing this option. Complete (1) and (2).*

(1) **Designation of proceedings to be included in reporter's transcript.** I request that the following proceedings in the trial court be included in the reporter's transcript. (*You must identify each proceeding you want included by its date, the department in which it took place, a description of the proceedings [for example, the examination of jurors, motions before trial, the taking of testimony, or the giving of jury instructions], the name of the court reporter who recorded the proceedings, and whether a certified transcript of the designated proceeding was previously prepared.)*

Date	Department	Description	Reporter's Name	Prev. prepared?
(a)				☐ Yes ☐ No
(b)				☐ Yes ☐ No
(c)				☐ Yes ☐ No
(d)				☐ Yes ☐ No
(e)				☐ Yes ☐ No
(f)				☐ Yes ☐ No
(g)				☐ Yes ☐ No

☐ *Check here if you need to list other proceedings and attach a separate page or pages listing those proceedings. At the top of each page, write "APP-103, item 4a."*

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(4) a. (continued)

(2) The proceedings designated in (1) ☐ include ☐ do not include all of the testimony in the trial court. If the designated proceedings DO NOT include all of the testimony, state the points that you intend to raise on appeal. *(Rule 8.834(a)(2) provides that your appeal will be limited to these points unless, on a motion, the appellate division permits otherwise.)*

_____

_____

_____

☐ *Check here if you need more space to list other points and attach a separate page or pages listing those points. At the top of each page, write "APP-103, item 4a(2)."*

(3) ☐ **Certified transcripts.** I have attached to this Appellant's Notice Designating Record on Appeal an original certified transcript of *all the proceedings I have designated* in (1). The transcript complies with the format requirements in rule 8.144 of the California Rules of Court. Under rule 8.834, no payment is due for this transcript (skip the rest of (4) and go to (5)).

(4) **Payment for reporter's transcript.**

(a) ☐ I will pay for the reporter's transcript I have designated in (1). Within 10 days of getting the reporter's estimate of the cost of the transcript, I will:

☐ Deposit an amount equal to the estimated cost of the transcript with the trial court, and a fee of $50 for the superior court to hold this deposit in trust. I understand that if I do not comply with this requirement, my appeal may be dismissed.

☐ File with the trial court a copy of the written waiver of deposit signed by the reporter. I understand that if I do not comply with this, my appeal may be dismissed.

(b) ☐ I am unable to afford the cost of the reporter's transcript I have designated in (1) and am therefore applying to the Transcript Reimbursement Fund to pay for this transcipt. Within 10 days of receipt of the court reporter's estimate of the costs for this transcript, I will file with the trial court a copy of my application to the Court Reporters Board for payment or reimbusement from the Transcript Reimbursement Fund.

(5) **Format of reporter's transcript.** I request that the reporter provide my copy of the transcript in:

(a) ☐ Paper format only.

(b) ☐ Electronic format only.

(c) ☐ Both paper and electronic format.

OR

b. ☐ **Transcript From Official Electronic Recording.** *This option is available only if an official electronic recording was made of what was said in the trial court. Check with the trial court to see if an official electronic recording was made in your case before choosing this option. Identify each proceeding you want included by its date, the department in which it took place, a description of the proceedings, and if you know it, the name of the electronic recording monitor who recorded the proceedings:*

Date	Department	Description	Electronic Monitor's Name
(a)			
(b)			
(c)			

☐ *Check here if you need more space to describe any proceeding or to list more proceedings and attach a separate page describing or listing those proceedings. At the top of each page, write "APP-103, item 4b."*

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4 b. (continued)

Check and complete (1) or (2).

(1) ☐ I will pay the trial court clerk for this transcript myself. I understand that if I do not pay for the transcript, my appeal may be dismissed.

(a) ☐ With this notice designating the record on appeal, I have deposited with the trial court clerk the approximate cost of transcribing the proceedings I designated above, calculated as provided in rule 8.130(b)(1)(B).

(b) ☐ Within 10 days of receipt of the clerks estimate of the cost of the transcript, I will deposit that amount with the trial court clerk.

(2) ☐ I am asking that the transcript be provided at no cost to me because I cannot afford to pay this cost. I have attached *(check (a) or (b) and attach the appropriate document):*

(a) ☐ An order granting a waiver of the cost under rules 3.50–3.58 and 8.818(d).

(b) ☐ An application for a waiver of court fees and costs under rules 3.50–3.58 and 8.818(d). *(Use* Request to Waive Court Fees *(form FW-001). The court will review this form to decide if you are eligible for a fee waiver.)*

OR

c. ☐ **Copy of Official Electronic Recording.** *This option is available only if an official electronic recording was made of what was said in the trial court, the court has a local rule for the appellate division permitting the use of the official electronic recording itself as the record of the proceedings, and all of the parties have agreed (stipulated) that they want to use the recording itself as the record of what was said in the case. Check with the trial court to see if an official electronic recording was made in your case before choosing this option. You must attach a copy of your agreement (stipulation) with the other parties to this notice. Check and complete (1) or (2).*

(1) ☐ I will pay the trial court clerk for this copy of the recording myself when I receive the clerk's estimate of the cost of this copy. I understand that if I do not pay for this copy of the recording, it will not be prepared and provided to the appellate division.

(2) ☐ I am asking that a copy of the recording be provided at no cost to me because I cannot afford to pay this cost. I have submitted the following document with this notice designating the record *(check (a) or (b) and submit the appropriate document):*

(a) ☐ An order granting a waiver of the cost under rules 3.50–3.58 and 8.818(d).

(b) ☐ An application for a waiver of court fees and costs under rules 3.50–3.58 and 8.818(d). *(Use* Request to Waive Court Fees *(form FW-001). The court will review this form to decide if you are eligible for a fee waiver.)*

OR

d. ☐ **Agreed Statement.** *An agreed statement is a summary of the trial court proceedings agreed to by the parties. See form APP-101-INFO for information about preparing an agreed statement. Check (1) or (2).*

(1) ☐ I have attached an agreed statement to this notice.

(2) ☐ All the parties have agreed in writing (stipulated) to try to agree on a statement *(you must attach a copy of this agreement (stipulation) to this notice).* I understand that, within 30 days after I file this notice, I must file either the agreed statement or a notice indicating the parties were unable to agree on a statement and a new notice designating the record on appeal, and if I do not, the court may dismiss my appeal.

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4 (continued)

OR

e. ☐ **Statement on Appeal.** *A statement on appeal is a summary of the trial court proceedings approved by the trial court. See form APP-101-INFO for information about preparing a proposed statement. Check (1) or (2).*

(1) ☐ I have attached my proposed statement on appeal to this notice. (*If you are not represented by a lawyer in this appeal, you must use* Proposed Statement on Appeal (Limited Civil Case) *(form APP-104) to prepare and file this proposed statement. You can get a copy of form APP-104 at any courthouse or county law library or online at* www.courts.ca.gov/forms.htm.)

(2) ☐ I have NOT attached my proposed statement on appeal to this notice. I understand that I must serve and file this proposed statement in the trial court within 20 days of the date I file this notice and that if I do not file the proposed statement on time, the court may dismiss my appeal.

Record of the Documents Filed in the Trial Court

5 I elect (choose)/My client elects to use the following record of the documents filed in the trial court *(check a, b, or c and fill in any required information):*

a. ☑ **Clerk's Transcript.** *(Fill out (1)–(4).) Note that, if the appellate division has adopted a local rule permitting this, the clerk may prepare and send the original court file to the appellate division instead of a clerk's transcript.*

(1) **Required documents.** *The clerk will automatically include the following items in the clerk's transcript, but you must provide the date each document was filed or, if that is not available, the date the document was signed.*

Document Title and Description	Date of Filing
(a) Notice of appeal	9/11/2023
(b) Notice designating record on appeal (this document)	9/11/2023
(c) Judgment or order appealed from	
(d) Notice of entry of judgment (if any)	
(e) Notice of intention to move for new trial or motion to vacate the judgment, for judgment notwithstanding the verdict, or for reconsideration of an appealed order (if any)	
(f) Ruling on any item included under (e)	
(g) Register of actions or docket	

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5 a. (continued)

(2) **Additional documents.** *If you want any documents in addition to the required documents listed in (1) above to be included in the clerk's transcript, you must identify those documents here.*

☑ I request that the clerk include in the transcript the following documents that were filed in the trial court. *(Identify each document you want included by its title and provide the date it was filed or, if that is not available, the date the document was signed.)*

Document Title and Description	Date of Filing
(a) Return on Attachment / Execution	12/24/2023 Feb. 24, 20:
(b)	
(c)	
(d)	
(e)	

☐ *Check here if you need to list other documents and attach a separate page or pages listing those documents. At the top of each page, write "APP-103, item 5a(2)."*

(3) **Exhibits.**

☐ I request that the clerk include in the transcript the following exhibits that were admitted in evidence, refused, or lodged in the trial court. *(For each exhibit, give the exhibit number (such as Plaintiff's #1 or Defendant's A) and a brief description of the exhibit, and indicate whether or not the court admitted the exhibit into evidence. If the trial court has returned a designated exhibit to a party, the party who has that exhibit must deliver it to the trial court clerk as soon as possible.)*

Exhibit Number	Description	Admitted Into Evidence
		☐ Yes ☐ No
		☐ Yes ☐ No
		☐ Yes ☐ No
		☐ Yes ☐ No
		☐ Yes ☐ No

☐ *Check here if you need to list other exhibits and attach a separate page or pages listing those exhibits. At the top of each page, write "APP-103, item 5a(3)."*

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Trial Court Case Name: _____ Trial Court Case Number:

(5) a. (continued)

(4) **Payment for clerk's transcript.** *(Check a or b.)*

(a) ☐ I will pay the trial court clerk for this transcript myself when I receive the clerk's estimate of the costs of the transcript. I understand that if I do not pay for the transcript, it will not be prepared and provided to the appellate division.

(b) ☑ I am asking that the clerk's transcript be provided at no cost to me because I cannot afford to pay this cost. I have submitted the following document with this notice designating the record *(check (i) or (ii) and submit the checked document):*

(i) ☑ An order granting a waiver of the cost under rules 3.50–3.58 and 8.818(d).

(ii) ☐ An application for a waiver of court fees and costs under rules 3.50–3.58 and 8.818(d). *(Use* Request to Waive Court Fees *(form FW-001). The court will review this form to decide if you are eligible for a fee waiver.)*

OR

b. ☐ **An appendix under rule 8.845.**

OR

c. ☐ **Agreed statement.** *(This option is only available if you have chosen to use an agreed statement as the record of the oral proceedings under item (4) above and you attach to your agreed statement copies of all the documents that are required to be included in the clerk's transcript. These documents are listed in 5a(1) above and in rule 8.832 of the California Rules of Court.)*

Date: 9/11/2023

DERRICK LAMONT BEVERLY
Type or print your name

Signature of appellant or attorney

09/19/2023

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